

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

Filed:

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MARTIS DANIELS,

Plaintiff designates

KINGS

County as Place of trial

Plaintiff,

The place of venue is:

KINGS COUNTY

-against-

SUMMONS

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, P.O. MATHEW
RODIN, P.O. DENNIS FERRER, P.O., ROBERT
MARACHILIN, P.O. "JOHN DOES # 1 - 10" and
P.O. "JANE DOES # 1 - 10",

Plaintiff resides at:

329 Patchen Avenue

Brooklyn, N.Y. 11233

Defendant(s).

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
December 30, 2022


**THE LAW OFFICE OF
GEORGE STAVROPOULOS, P.L.L.C.**
Attorney for Plaintiff
120 Bay Ridge Avenue, Suite 210
Brooklyn, New York 11220
(718) 797-1212

DEFENDANT'S ADDRESS:

The City of New York

The New York City Police Department

**P.O. MATHEW RODIN, P.O. DENNIS FERRER,
P.O., ROBERT MARACHILIN, P.O. "JOHN DOES
1 - 10" and "JANE DOES # 1 - 10"**

c/o Office of the Corporation counsel

100 Church Street

New York, New York 10007

DEFENDANT'S ADDRESS RIDER:

*The New York City Police Department,
P.O. MATHEW RODIN, P.O. DENNIS FERRER,
P.O., ROBERT MARACHILIN, P.O. "JOHN DOES
1 - 10" and "JANE DOES # 1 - 10"
One Police Plaza
New York, New York 10007*

**P.O. MATHEW RODIN
P.O. DENNIS FERRER
P.O., ROBERT MARACHILIN
P.O. "JOHN DOES # 1 - 10" and "JANE DOES # 1 - 10"
*The 84th Police Precinct
301 Gold Street
Brooklyn, New York 11201***

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
MARTIS DANIELS,

Index No.:

*Plaintiff,***VERIFIED**
COMPLAINT*-against-*THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, P.O. MATHEW
RODIN, P.O. DENNIS FERRER, P.O., ROBERT
MARACHILIN, P.O. "JOHN DOES # 1 - 10" and
P.O. "JANE DOES # 1 - 10",*Defendant(s).*

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Plaintiff, by his attorneys, **THE LAW OFFICES OF GEORGE STAVROPOULOS, P.L.L.C.**, complaining of the Defendants, respectfully alleges as follows, upon information and belief:

1. That at all times herein mentioned the Plaintiff, MARTIS DANIELS, was and still is a resident of 329 Patchen Avenue, Brooklyn, N.Y. 11233.

2. That at all times herein mentioned the Defendant, THE CITY OF NEW YORK (hereinafter referred to as "CITY"), was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3. That at all times herein mentioned, the Defendant, THE NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as "NYPD") was a department, division or an agency duly organized and existing under and by virtue of the laws of the State and/or City of New York.

4. That at all times hereinafter mentioned, the Defendant, P.O. Mathew Rodin (hereinafter referred to as “Rodin”), is an officer of NYPD and was under the direct employ and control of the NYPD.

5. That at all times hereinafter mentioned, the Defendant, P.O. Dennis Ferrer (hereinafter referred to as “Ferrer”), is an officer of NYPD and was under the direct employ and control of the NYPD.

6. That at all times hereinafter mentioned, the Defendant, P.O. Robert Marachilin (hereinafter referred to as “Marachilin”), is an officer of NYPD and was under the direct employ and control of the NYPD.

7. That at all times herein mentioned, The Defendants, CITY and NYPD, hired, trained and were responsible for the actions of their police officers, namely Rodin, Marachilin and Ferrer (hereinafter referred to as “Defendant P.O.’s”), while said officers were under their control.

NOTICE OF CLAIM AND 50-h HEARING

8. That on January 3, 2022, the Plaintiff duly served the Defendants, with a Notice of Claim pursuant to Section 50-e of the Municipal Law within the time period proscribed by Law.

9. That the Plaintiff has complied with all the conditions precedent to the institution of this action and has complied with all the provisions of the charter of the City of New York in relation thereto and in particular has duly presented their claims to the Comptroller and Corporation Counsel of the City of New York for adjustment, and that more than thirty (30) days have elapsed since the presentment of said verified demands and claims and the said Comptroller

and/or Defendants have wholly neglected, failed and refused to make any adjustment of payment thereof, and this action was commenced within one (1) year and ninety (90) days after the Plaintiff's arrest and false imprisonment.

10. That the Defendants have conducted a Municipal Hearing pursuant to Section 50-h of the Municipal Law on August 31, 2022, and that the Plaintiff has otherwise complied with all of the requirements and conditions precedent required by law to be performed prior to the institution of this action.

FACTUAL ALLEGATIONS

11. That on the 5th day of October, 2021, at or about 9:15 P.M., inside the Target Department Store located at 445 Albee Square West, Brooklyn, New York 11201, County of Kings, City and State of New York, Defendant P.O.'s, employees of Defendant NYPD, a department or division of Defendant CITY, did without just cause wrongfully stopped Plaintiff who was lawfully shopping in the department store and did without just cause attempt to restrain Plaintiff who was not resisting and did without informing Plaintiff that he was being placed under arrest. Defendant P.O.'s proceeded to harass, intimidate, terrorize, brutally, violently, and viciously assault Plaintiff, followed by countless closed fist punches by Defendant P.O.'s and other multiple officers with full force in and around the head and body of the Plaintiff, held him down despite Plaintiff not resisting, placed with the full force of their legs repeated kicks and stomps with at least two or more police officers participating and used Taser Guns to Tase Plaintiff several times. Said Police Officers did further wrongfully and illegally search Plaintiff and seize Plaintiff's property.

12. That Plaintiff was handcuffed and transported to the 84th Police Precinct without just cause and with actual malicious intent, was maliciously and unjustly kept and detained by the NYPD against his will, and was processed and subsequently prosecuted, with malicious and/or gross intent, under the penal code of the State of New York. That the actions of the Defendants were done with malice and without probable cause to believe that after the arrest there would be a conviction of the Plaintiff.

13. That all criminal charges and arrestable offenses in the accusatory instrument brought against Plaintiff were dismissed on January 6, 2021 by the Kings County District Attorney's Office.

14. That during the assault and arrest, other officers, agents, servants and/or employees of the Defendants remained at the scene and did not stop or attempt to stop the arrest, assault and Tasing of the Plaintiff thereby aiding and abetting each other in their unlawful acts and in violating the special duty they owed to the Plaintiff.

15. That said arrest, imprisonment and assault were unwarranted and unjustified under the circumstances then and there existing and was caused solely and wholly by the negligence, carelessness and recklessness of the Defendants, their agents, servants and/or employees, and was without any fault, negligence or want of care on the part of the Plaintiff.

16. That the acts complained of were done by the police officers and/or detectives in the course of their employment with the Defendants, CITY and NYPD, and was without cause and provocation; that the Defendant P.O.'s were further careless and negligent in the manner and method in which they performed their duties; in that each acted without cause in assaulting, arresting and imprisoning the Plaintiff; in that each acted indiscriminately and in total disregard of

the life, limb or safety of the Plaintiff; in that each failed to exercise due care, caution and prudence in the performance of their duties; and that each failed to stop and prevent the unlawful acts.

17. That solely as a result of the negligence, carelessness and recklessness of the Defendant P.O.'s CITY and NYPD its agents, servants, employees and officers as aforesaid, the Plaintiff suffered defamation of his character, serious and permanent, psychological and physical injuries.

18. That by reason of the aforesaid, Plaintiff was rendered sick, sore, lame and disabled, and was unable to attend to his usual duties for a considerable time including employment, required medical aid and attention, suffered grievous physical pain and mental anguish and has been damaged and demands compensatory and punitive damages in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIRST CAUSE OF ACTION
FOR FALSE ARREST AND WRONGFUL IMPRISONMENT

19. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "19" with the same force and effect as if more fully set forth at length herein.

20. Defendants without cause, provocation or probable cause did arrest, detain and imprison the Plaintiff depriving him of his liberty and civil rights.

21. That Defendant, NYPD failed to investigate the facts and circumstances surrounding the Plaintiffs arrest and failed to follow up on information provided by Plaintiff at the time of his arrest resulting in his wrongful imprisonment.

22. That by reason of the aforesaid, Plaintiff was rendered sick, sore, lame and disabled, and was unable to attend to his usual duties for a considerable time, required medical aid and attention, suffered grievous physical pain and mental anguish and has been damaged and demands compensatory damages in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
FOR NEGLIGENCE AGAINST ALL DEFENDANTS

23. The Plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "23" inclusive with the same force and effect as if more fully set forth at length herein.

24. That said incident and the injuries resulting therefrom were caused solely by the negligence, carelessness, and recklessness of Defendants, CITY and NYPD, through its agents, servants, employees and the police officers involved, Defendant P.O.'s, both directly and vicariously.

25. Such negligence consisted of negligence in training, hiring, supervision and retention of the police officers/detectives involved in this incident; in failing to observe the existing police departments protocols for police officers/detectives designed to govern the use of deadly lethal force causing the serious injuries both physical and emotional resulting in death, discrimination arising and resulting out of the attack of the Plaintiff and further, deprived Plaintiff's civil rights, privileges and immunities secured under the Constitutions of the United States of America and State of New York; failing to use care in the performance of police duties as reasonably prudent and careful police officers would have used in similar circumstances; in hiring and retaining persona who were unfit to serve as police officers/detectives; failing to properly investigate their

background; in failing to train and instruct police officers/detectives, especially regarding the abuse of power while in the field; in failing to give police officers/detectives proper instructions on the use of force; improperly supervised police officers/detectives in the field, including the police officers/detectives as well as in the staffing, administration and processing of persons suspected in violation of the criminal laws of the State of New York which allowed the attack of the Plaintiff, MARTIS DANIELS, which resulted in the serious and permanent emotional and physical injuries suffered by the Plaintiff.

26. The Defendants, CITY and NYPD, through its agents, servants, employees and the police officers involved, Defendant P.O.'s, were negligent, reckless and careless in attacking the Plaintiff.

27. The Defendants, CITY, was further negligent in failing to properly investigate the aforesaid attack, said negligence includes but not limited to the failure to seek out witnesses to the attack, take witness statements and in failing to timely question those police officers involved.

28. As the result of said negligence, the Plaintiff, MARTIS DANIELS, was caused to suffer severe and permanent physical injuries and pain and suffering resulting in emotional and psychological distress and horror.

29. By reason of the foregoing, the Plaintiffs, MARTIS DANIELS, demands judgment for negligence against Defendants, CITY and NYPD, including, but not limited to Defendant P.O.'s, in a sum exceeding the jurisdictional limits of all the lower courts.

AS AND FOR A THIRD
CAUSE OF ACTION FOR ASSAULT AND BATTERY

30. The Plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “30” inclusive with the same force and effect as if more fully set forth at length herein.

31. That Plaintiff, MARTIS DANIELS, was lawfully inside the Target Department Store located at 445 Albee Square West, Brooklyn, New York 11201, County of Kings, City and State of New York.

32. That Plaintiff was attacked without reason or provocation by the Defendants, The City and NYPD, including but not limited to Defendant P.O.’s, as agents, servants and/or employees of the Defendants, CITY and NYPD.

33. The aforementioned attack was performed knowingly, intentionally and willfully.

34. That the police officers involved in this incident who committed the aforementioned attack on the Plaintiff, were acting within the scope of employment with the Defendants, CITY and NYPD.

35. That the attack of the Plaintiff, MARTIS DANIELS, was without probable cause.

36. By reason of said assault and battery, the Plaintiff, was caused to suffer severe physical injuries and pain and suffering, emotional and psychological distress and horror.

37. By reason of the foregoing, the Plaintiff, demands judgment for the assault and battery of Plaintiff, MARTIS DANIELS, against the Defendants, CITY and NYPD, including, but not limited to Defendant P.O.’s, in a sum exceeding the jurisdictional limits of all lower courts.

**AS AND FOR A FOURTH CAUSE OF
ACTION FOR NEGLIGENT HIRING AND RETENTION**

38. The Plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “38” inclusive with the same force and effect as if more fully set forth at length herein.

39. The Defendants, CITY and NYPD, did not exercise reasonable care and diligence in the selection, engagement, employment and training of its agents, servants, and employees and were negligent in the hiring, training and retention of the Defendant P.O.’s, so as to cause the Plaintiff, MARTIS DANIELS, to suffer severe and permanent physical injuries and pain and suffering resulting in emotional and psychological distress and horror.

40. That the Defendants, CITY and NYPD, had prior knowledge of the inappropriate, unlawful, and improper conduct of the Defendant P.O.’s, and continued to employ them and allowed them to be in contact with the public at large.

41. By reason of the foregoing, the Plaintiff, MARTIS DANIELS, demands judgment for negligent hiring the retention against the Defendants, CITY and NYPD, including, but not limited to Defendant P.O.’s, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION
FOR CIVIL RIGHTS VIOLATIONS - 42 USCA 1983**

42. The Plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “42” inclusive with the same force and effect as if more fully set forth at length herein.

43. The Defendants, CITY and NYPD, including but not limited to Defendant P.O.'s, acting under the color of law and within the scope of their authority, assaulted and battered the Plaintiff, MARK DANIELS, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

44. The Defendants, CITY and NYPD, including but not limited to Defendant P.O.'s, acting under the color of law and within the scope of their authority, deprived the Plaintiff, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

45. The Defendants deprived the Plaintiff, MARTIS DANIELS, by their actions of his civil rights as guaranteed by statute.

46. That the attack was in violation of the civil rights of the Plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws, including the first (1st) and the fourth (4th) and fourteenth (14th) Amendment to the United States Constitution.

47. That the deprivation by the Defendants of Plaintiff's civil rights was a result of the Defendants, CITY and NYPD including but not limited to Defendant P.O.'s, acting under color of law and within their authority as law enforcement officers within the employ of the Defendants, CITY and NYPD.

48. The Defendant P.O.'s, conspired with one another to deprive the Plaintiff of his constitutional rights, including the rights: to be free from the intentional use of unreasonable force; to be free from unreasonable search and seizure, unreasonable and excessive force.

49. The Defendants further violated the civil rights of the Plaintiff, MARTIS DANIELS, by conspiring to cover up the unprovoked assault and battery of the Plaintiff. Defendants

engaged in a fabrication as to the acts and events leading up to and resulting in the attack of the Plaintiff.

50. That the Defendants actions were not privileged or immune.

51. That the Defendants, CITY and NYPD, including but not limited to Defendant P.O.'s, were not acting with immunity when they deprived the Plaintiff, MARTIS DANIELS, of his civil rights.

52. By reason of the foregoing, the Plaintiff, MARTIS DANIELS, demands judgment for civil rights violation against the Defendants, CITY and NYPD, including, but not limited to Defendant P.O.'s, in a sum exceeding the jurisdictional limits of all lower courts.

**AS AND FOR A SIXTH CAUSE
OF ACTION FOR PUNITIVE DAMAGES**

53. The Plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "53" inclusive with the same force and effect as if more fully set forth at length herein.

54. The actions of the Defendants herein above alleged, to harass, intimidate, terrorize, brutally, violently, and viciously assault Plaintiff and Tase Plaintiff, were grossly malicious, willful and wanton negligence, with conduct so reckless as to amount to conscious disregard for the rights and well-being of the Plaintiff, causing Plaintiff to additionally suffer severe physical injuries and pain and suffering, emotional and psychological distress and horror

55. The Defendants, CITY and NYPD, authorized, permitted and ratified the unlawful and negligent acts of its agents, servants and/or employees, herein above alleged, including, but not limited to Defendant P.O.'s.

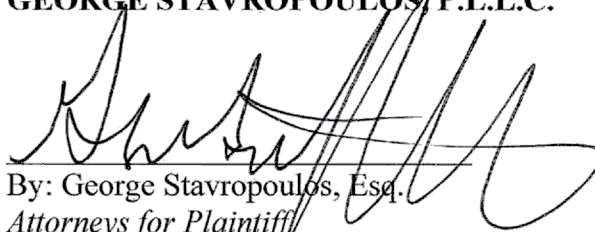
56. By reason of the foregoing, the Plaintiff, demands judgment for punitive damages against the Defendants, CITY and NYPD, including, but not limited to Defendant P.O.'s, in a sum exceeding the jurisdictional limits of all the lower courts.

WHEREFORE, Plaintiff demands judgment against the Defendants, in the First Cause of Action, the Second Cause of Action, the Third Cause of Action, the Fourth Cause of Action, the Fifth Cause of Action and the Sixth Cause of Action. The amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Brooklyn, New York
December 30, 2022

Yours, etc.

**THE LAW OFFICES OF
GEORGE STAVROPOULOS, P.L.L.C.**

A handwritten signature in black ink, appearing to read 'George Stavropoulos', is written over a horizontal line.

By: George Stavropoulos, Esq.
Attorneys for Plaintiff
120 Bay Ridge Avenue
Brooklyn, New York 11220
(718) 797-1212

VERIFICATION

STATE OF NEW YORK)
)ss.:
COUNTY OF KINGS)

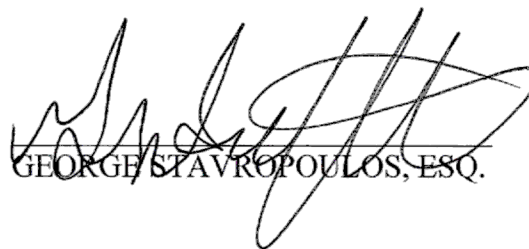
I, the undersigned, am an attorney admitted to practice in the Courts of the State of New York, state as follows:

I am an attorney with The Law Office of George Stavropoulos, P.L.L.C., the attorney of record for Plaintiff, **MARTIS DANIELS**.

I have read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof; that I know the same to be true to my knowledge, except as to matters alleged on information and belief, and as to those matters I believe them to be true; that the grounds and source of my information and belief is based upon consultation with the Plaintiff and information contained in the files and records maintained by your affirmant's office and I make this verification in accordance with CPLR 3020(d)(2).

I affirm the foregoing statements are true under penalties of perjury.

Dated: Brooklyn, New York
December 30, 2022


GEORGE STAVROPOULOS, ESQ.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS****INDEX NO.:**

MARTIS DANIELS,**Plaintiff,****-against-****THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. MATHEW RODIN, P.O. DENNIS FERRER,
P.O., ROBERT MARACHILIN, P.O. "JOHN DOES # 1 - 10" and
P.O. "JANE DOES # 1 - 10",****Defendant(s).**

**The Law Office of George Stavropoulos, P.L.L.C.
120 Bay Ridge Avenue, Suite 210
Brooklyn, New York 11220
Tel. (718) 797-1212
Fax. (718) 797-4415**

SUMMONS AND VERIFIED COMPLAINT

STATE OF NEW YORK, COUNTY OF KINGS, SS.:

GEORGE STAVROPOULOS, the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a "certification" for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

**Dated: Brooklyn, New York
December 30, 2022**

GEORGE STAVROPOULOS, ESQ.

PLEASE TAKE NOTICE:

() that the within is a (certified) true copy of a Notice of entered in the Office of the clerk of the within Entry named Court on

**() that an Order of which the within is a true copy will be presented for Notice of settlement to the Hon. one of the Judges of the Settlement within named Court, on
, at**

**The Law Office of George Stavropoulos, P.L.L.C.
120 Bay Ridge Avenue, Suite 210
Brooklyn, New York 11220
718-797-1212**